

Tentative Rulings for May 13, 2026
Department 502

For any matter where an oral argument is requested and any party to the hearing desires a remote appearance, such request must be timely submitted to and approved by the hearing judge. In this department, the remote appearance will be conducted through Zoom. If approved, please provide the department's clerk a correct email address. (CRC 3.672, Fresno Sup.C. Local Rule 1.1.19)

There are no tentative rulings for the following cases. The hearing will go forward on these matters. If a person is under a court order to appear, he/she must do so. Otherwise, parties should appear unless they have notified the court that they will submit the matter without an appearance. (See California Rules of Court, rule 3.1304(c).) *The above rule also applies to cases listed in this "must appear" section.*

25CECG00646 *Todd Livingston vs. Fresno Community Hospital and Medical Center*

The court has continued the following cases. The deadlines for opposition and reply papers will remain the same as for the original hearing date.

24CECG03545 *Luis Zuniga v. Community Medical Centers* is continued to Thursday, May 14, 2026, at 3:30 p.m. in Department 502.

24CECG01225 *Elizabeth Vasquez v. Pedro Ibarra* is continued to Wednesday, June 24, 2026, at 3:30 p.m. in Department 501.

25CECG04555 *Davis Hernandez v. Sai Hospitality, LLC* is continued to Wednesday, June 17, 2026, at 3:30 p.m. in Department 501.

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Tentative Rulings for Department 502

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Tentative Ruling

Re: **Reyes v. Mad Duck Brewing, LLC, et al.**
Superior Court Case No. 23CECG00936

Hearing Date: May 13, 2026 (Dept. 502)

Motion: Petition to Confirm Arbitration Award

Tentative Ruling:

To correct the arbitrator award with respect to orders made to stayed claims not subject to arbitration in *Ariel Reyes v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936 and to grant the petition to confirm the final corrected arbitration award. (Code Civ. Proc. § 1285, *et seq.*)

Explanation:

Under Code of Civil Procedure section 1285, "Any party to an arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as respondents all parties to the arbitration and may name as respondents any other persons bound by the arbitration award." (Code Civ. Proc., § 1285.)

"If a petition or response under this chapter is duly served and filed, the court shall confirm the award as made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates the award or dismisses the proceeding." (Code Civ. Proc., § 1286.)

Also, under section 1286.2, the court shall vacate the award if the court determines any of the following:

- (1) The award was procured by corruption, fraud or other undue means.
- (2) There was corruption in any of the arbitrators.
- (3) The rights of the party were substantially prejudiced by misconduct of a neutral arbitrator.
- (4) The arbitrators exceeded their powers and the award cannot be corrected without affecting the merits of the decision upon the controversy submitted.
- (5) The rights of the party were substantially prejudiced by the refusal of the arbitrators to postpone the hearing upon sufficient cause being shown therefor or by the refusal of the arbitrators to hear evidence material to the controversy or by other conduct of the arbitrators contrary to the provisions of this title.

(6) An arbitrator making the award either: (A) failed to disclose within the time required for disclosure a ground for disqualification of which the arbitrator was then aware; or (B) was subject to disqualification upon grounds specified in Section 1281.91 but failed upon receipt of timely demand to disqualify himself or herself as required by that provision... (Code Civ. Proc., § 1286.2, subd. (a).)

"Subject to Section 1286.8, the court, unless it vacates the award pursuant to Section 1286.2, shall correct the award and confirm it as corrected if the court determines that: (a) There was an evident miscalculation of figures or an evident mistake in the description of any person, thing or property referred to in the award; (b) The arbitrators exceeded their powers but the award may be corrected without affecting the merits of the decision upon the controversy submitted; or (c) The award is imperfect in a matter of form, not affecting the merits of the controversy." (Code Civ. Proc., § 1286.6.)

The Code of Civil Procedure sections dealing with vacation and correction of arbitrational warrants provide the exclusive grounds upon which court may review a private arbitration award. (*J. Alexander Securities, Inc. v. Mendez* (1993) 17 Cal.App.4th 1083.)

"[A]n award reached by an arbitrator pursuant to a contractual agreement to arbitrate is not subject to judicial review except on the grounds set forth in sections 1286.2 (to vacate) and 1286.6 (for correction)." (*Moncharsh v. Heily & Blase* (1992) 3 Cal.4th 1, 33.) Absent proof of one of the grounds listed in those sections, a court may not intervene. Even "the existence of an error of law apparent on the face of the award that causes substantial injustice does not provide grounds for judicial review." (*Ibid.*)

Defendants Mad Duck Brewing, LLC, Mad Duck Ventures, LLC, and Mad Duck Craft Management, LLC move to confirm an arbitration award pursuant to Code of Civil Procedure section 1285. The petitions are verified and include a copy of the arbitration agreement, the name of the arbitrator, and a copy of the arbitrator's award. The award sought to be confirmed is an order, drafted by petitioners, granting a dispositive motion and ordering the dismissal of the superior court actions which were stayed pending the arbitration. Plaintiff opposes the motion, arguing the award exceeds the authority of the arbitrator in making findings and orders with respect to plaintiff's PAGA claims.

The award on its face exceeds the authority of the arbitrator to resolve the dispute under the arbitration clause in its attempt to make orders with respect to the representative PAGA claim stayed in this action and not subject to arbitration. As such, the court intends to correct the award by striking the order to dismiss the superior court action and clarifying that the only PAGA claim that was before the arbitrator was the plaintiff's individual claim.

Specifically, the court will strike "all" at line 6 of page 2 of the order, insert the word "individual" between "the PAGA" at line 6 of page 2, strike "and the entire case entitled *Ariel Reyes et al. v. Mad Duck Brewing, LLC, et al.*, filed in Fresno County Superior Court as Case No. 23CECG00936, is dismissed with prejudice" at page 2 lines 7 through 9, and to strike "and are dismissed with prejudice from both civil cases entitled *Ariel Reyes et al. v. Mad Duck Brewing LLC, et al.*, filed in Fresno County Superior Court as Case Nos. 22CECG02134 and 23CECG00936. The entirety of the civil case entitled *Ariel Reyes et al.*

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Tentative Ruling

Re: **LENDonate CA LLC v Parents and Addicts in Need**
Superior Court Case No. 25CECG02575

Hearing Date: May 13, 2026 (Dept. 502)

Motion: By Plaintiff for Summary Judgment, or in the Alternative,
Adjudication

Tentative Ruling:

To grant. (Code Civ. Proc., § 437c, subd. (c).) Plaintiff is to submit a proposed judgment consistent with this ruling within seven days of service of the minute order by the clerk.

Explanation:

This motion arises out of a complaint for breach of contract and recovery of personal property. A trial court shall grant summary judgment where there are no triable issues of material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c, subd. (c).) Where a plaintiff moves for summary judgment, the plaintiff has the burden to produce admissible evidence as to each element of a cause of action. (Code Civ. Proc., § 437c, subd. (p)(1).)

To show a breach of contract, the plaintiff must demonstrate the existence of a contract, performance by plaintiff or an excuse for nonperformance, breach by the defendant, and damages. (*First Commercial Mortgage Co. v. Reece* (2001) 89 Cal.App.4th 731, 745.) Here, plaintiff has demonstrated the existence of a contract based on the loan agreement. (UMF Nos. 1-3.) Plaintiff has demonstrated its performance by disbursing the funds. (UMF Nos. 8-9.) Plaintiff has demonstrated defendant's default by failure to make payments after the extension of the maturity date. (UMF No. 16.) Plaintiff has demonstrated damages totaling \$62,233.53. (UMF Nos. 18, 26-35.)

For an action to recover personal property, "judgment for the plaintiff may be for the possession or the value thereof." (Code Civ. Proc., § 667.) Here, plaintiff has demonstrated its entitlement to possession of the collateral pursuant to the terms of the loan agreement. (UMF Nos. 4-5.)

Plaintiff has demonstrated it is entitled to attorney's fees and costs pursuant to the terms of the loan agreement. (UMF No. 15.) Plaintiff has also demonstrated the amount of attorney's fees and costs in this matter. (UMF Nos. 26-34.)

Plaintiff has met its burden. Defendant has not apposed this motion and therefore has not presented any evidence of any triable issues of fact. As such, the court grants the motion for summary judgment.

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Tentative Ruling

Re: **A. M. v. Fresno Unified School District**
Case No. 22CECG02656

Hearing Date: May 13, 2026 (Dept. 502)

Motions: Respondent Fresno County District Attorney's Office Motion to Quash Plaintiff's Deposition Subpoena

Tentative Ruling:

Respondent, Fresno County District Attorney's Office Motion to Quash Deposition Subpoena is granted.

Respondent, Fresno County District Attorney's Office request for sanctions is denied.

Explanation:

On February 13, 2026, respondent, Fresno County District Attorney's Office ("Respondent") received the Subpoena for Personal Appearance and Documents from plaintiff, A.M. ("plaintiff"). (Declaration of Jamie Kalebjian, ¶ 5, Exhibit "A" (hereinafter "Kalebjian Decl.").)

Respondent moved to quash the Subpoena on procedural defects, as well as other grounds such as being overly broad, and privilege.

Defective as Location of Deposition is Too Far

Respondent first argues that the deposition of a nonparty organization must be taken only within 75 miles of the organization's principal office in California, unless the organization consents to a more distant location. (Code Civ. Proc., § 2025.250, subd. (c).)

Respondent challenges and seeks to quash to plaintiff's "Deposition Subpoena for Personal Appearance and Production of Documents and Things," dated February 11, 2026. (Kalebjian Decl., Ex. A.) Paragraph 1 of the Subpoena by its own terms ordered Respondent's Custodian "TO APPEAR IN PERSON TO TESTIFY AS A WITNESS in this action at the following date, time, and place." (*Ibid.*) The date, time and place state: 3/4/2026; 10:00am; and 24151 Ventura Blvd., Ste 230, Calabasas, California 91302. (*Ibid.*) Paragraph 2 goes on to warn that "[t]he personal appearance of the custodian or other qualified witness and the production of original records are required by this subpoena." (*Ibid.*)

The Respondent's principal office is located at 2100 Tulare Street, Fresno, California 93721. (Kalebjian Decl., ¶ 8.) The location of the deposition is 217 miles from the Respondent's principal office. (*Id.*, ¶ 9.)

Code of Civil Procedure section 2025.250 requires that “[u]nless the court orders otherwise under Section 2025.260, the deposition of a natural person, whether or not a party to the action, shall be taken at a place that is, at the option of the party giving notice of the deposition, either within 75 miles of the deponent's residence, or within the county where the action is pending and within 150 miles of the deponent's residence.”

Calabasas is more than 150 miles from respondent's principal office in the City of Fresno. Therefore, the Court cannot enforce compliance with a subpoena that is defective on its face.

Defective as Notice Requirements to Consumer Not Met

Respondent further objects to plaintiff's Subpoena for failure provide notice to potential “consumers” as per Code of Civil Procedure section 1985.3.

Respondent correctly points out, the consumer notice requirements apply to all requests for “personal information” tendered to a state agency. (Code of Civ. Proc., § 1985.4) The term “personal information” in this contexts refers to any information that is maintained by an agency that identifies or describes an individual, including, but not limited to, his or her name, social security number, physical description, home address, home telephone number, education, financial matters, and medical or employment history. (Civ. Code, § 1798.3(a)) A “consumer,” in this context, means any natural person. (Code of Civ. Proc., § 1985.4.)

Plaintiff seeks various types of records requested containing personal information for the civil plaintiffs, and the victims, witnesses and defendants in the prior criminal proceedings. Plaintiff correctly points out that he cannot provide notice to consumers whose identity he does not know. (Plaintiff's Opposition Papers, pg. 3, Ins. 6-17.) In such instances, Code of Civil Procedure section 1983.5, subdivision (h) provides guidance:

Upon good cause shown and provided that the rights of witnesses and consumers are preserved, a subpoenaing party shall be entitled to obtain an order shortening the time for service of a subpoena duces tecum or waiving the requirements of subdivision (b) where due diligence by the subpoenaing party has been shown.

A party issuing a subpoena can petition the Court to waive the consumer notice requirement upon demonstrating that they have no other way to learn the identity of the person to be noticed. In order to do so, the issuing party would need to demonstrate due diligence in otherwise obtaining the necessary information. Here, plaintiff's opposition does not demonstrate due diligence.

In the alternative, Code of Civil Procedure section 1985.3, subdivision (b) states, “[p]rior to the date called for in the subpoena duces tecum for the production of personal records, the subpoenaing party shall serve **or cause to be served on the consumer whose records are being sought** a copy of the subpoena duces tecum, of the affidavit supporting the issuance of the subpoena ...[.] (emphasis added).”

Code of Civil Procedure section 1985.3, subdivision (b) can be met if plaintiff serves the consumer or causes the consumer to be served. This requirement can be met with an order issued by this Court to respondent, which has possession of the information necessary to comply with Code of Civil Procedure section 1985.3, subdivision (h), in order to serve the notice requirements. This balances the needs of the plaintiff to obtain discoverable information and comply with the statute, the requirement to protect the consumer, and the desire of respondent not to release information without compliance with the statute.

Therefore, the Court cannot currently enforce compliance with a subpoena that is defective on its face, and has not met the notice requirements.

Certain Categories of Identified Records Are Overly Broad and Unenforceable

Respondent argues that certain categories of identified records are overly broad and unenforceable. Respondent argues that the overly broad subject document requests are analogous to those in *Calcor Space Facility, Inc. v. Superior Court* (1997) 53 Cal.App.4th 216, where the defendant claimed that gun mounts it contracted with the plaintiff to manufacture did not meet the designated specifications, refused to accept the gun mounts, and contracted with a third party to supply them. (*Calcor*, 53 Cal.App.4th at 219.) In *Calcor*, the plaintiff served the third party manufacturer with a document subpoena that included 32 document demands, “to, in effect, produce all materials in its possession relating to gun mounts, going back nearly ten years.” (*Ibid.*) The Court of Appeal found that the “12-page demand might as well be condensed into a single sentence: Produce everything in your possession which in any way relates to gun mounts.” (*Id.* at 222.) The Court of Appeal concluded that the subpoena was impermissibly overbroad because, “although facially detailed and particularized, the demand, in effect, is very simple. It orders Calcor to produce everything in its possession which has anything to do with gun mounts (including the gun mount assemblies themselves).” (*Id.* at 220.)

The Court agrees with Respondent that Items 4, 5, 6, 7, 8, 9, 10, and 11 to compel production of all records pertaining to (1) “all evidence booked or recovered”, (2) “Maximo Donato Parayno III”, (3) “Superior Court of California, County of Fresno, Court Case No. F03901491-1”, (4) Fresno County DA File No. 2003S7675”, (5) “G.V.”, (6) “S.N.”, (7) “A.M.”, and (8) “Sarah Sawdey-Ochoa”, is overly broad.

Plaintiff stating the purposes of why plaintiff seeks those documents, (Plaintiff's Opposition Papers, pg. 5, Ins. 1-5), doesn't ameliorate the requests being overbroad, where the requests are not tailored to plaintiff's explanation.

For instance, Item 4 in the Subpoena regarding “(a)ny and all evidence booked or recovered” has no bounds of time or scope. (Kalebjian Decl., ¶¶ 5, 12, Ex. A.) The other categories of identified documents in the Subpoena simply demand everything in respondent's possession related to the criminal prosecution of Maximo Doanto Parayno III and the related criminal case in Fresno County Superior Court case No. F03901491-1. Therefore, these requests for production are unenforceable as being overly broad. (*Calcor*, *supra*, 53 Cal.App.4th at 223.)

Privilege

Given the Court's determination that plaintiff's requests are overly broad and unenforceable, the issue of privilege is premature to consider.

When information protected by the right to privacy under Article I, Section 1 of the California Constitution is sought by way of discovery, the burden falls on the party asserting a privacy interest to show that their privacy interests are so serious that they outweigh the interests of the requesting party's prospective invasion. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

A public entity has a privilege to refuse to disclose and to prevent others from disclosing official information, if an authorized person claims the privilege and disclosure is either (1) prohibited by an act of Congress or a California statute, i.e., absolutely privileged (Evid. Code, § 1040, subd. (b)(1)), or (2) against the public interest, i.e., conditionally privileged, subject to the judge's discretion (*Id.* at subd. (b)(2)). Official information is information acquired in confidence by a public employee during his or her duty and not open, or officially disclosed, to the public before the claim of privilege is made. (*Id.* at subd. (a).)

Here, respondent does not claim any absolute privilege under Evidence Code section 1040, subdivision (b)(1). If the requested information is conditionally privileged, and “the public entity satisfies the threshold burden of showing that the information was acquired in confidence, the statute requires the court next to weigh the interests and to sustain the privilege only if there is a necessity for preserving the confidentiality of the information that outweighs the necessity for disclosure in the interest of justice.” (*Marylander v. Superior Court* (2000) 81 Cal.App.4th 1119, 1126 [internal quotations omitted].)

Since plaintiff's requests are overly broad and unenforceable, the Court does not see a purpose of entertaining this issue. If plaintiff chooses to focus their requests, the Court can analyze specific assertions of privilege to specific items requested, accordingly.

Sanctions

Respondent moves for monetary sanctions against plaintiff pursuant to Code of Civil Procedure section 1987.2. Although plaintiff unsuccessfully opposed this motion, the Court finds that plaintiff acted with substantial justification, and made reasonable arguments in support of their position. No sanctions are appropriate.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK on 05/12/26
(Judge's initials) (Date)

(35)

Tentative Ruling

Re: **Byrd v. City of Clovis et al.**
Superior Court Case No. 25CECG00550

Hearing Date: May 13, 2026 (Dept. 502)

Motion: Motion for Summary Judgment

Tentative Ruling:

To take off calendar, as no moving papers have been filed.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: KCK **on** 05/12/26
(Judge's initials) (Date)